



Instructions for Application for Authorization to Issue Certification for Health Care Workers

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-905

What Is the Purpose of This Application?

For an organization to apply for authorization to issue certificates to health care workers.

Who May File This Form?

An organization wishing to obtain authorization to issue certificates to health workers under section 212(a)(5)(C) or section 212(r) of the Immigration and Nationality Act must file this application.

1. Which Occupations Require Certification?

The occupations requiring health care worker certification are:

- A. Licensed practical nurses, licensed vocational nurses, and registered nurses;
- B. Occupational therapists;
- C. Physical therapists;
- D. Speech language pathologists and audiologists;
- E. Medical technologists (clinical laboratory scientists);
- F. Physician assistants; and
- G. Medical technicians (clinical laboratory technicians).

2. What Documents Do You Need to File With This Application?

You must submit a statement addressing how your organization meets the standards provided in these instructions. In addition, by filing this application you agree to submit any information that U.S. Citizenship and Immigration Services (USCIS) may request in order to determine your eligibility to issue certificates.

How Will USCIS Process This Application?

After the application is filed, USCIS will review the application for completeness. If the application is complete, USCIS will forward a copy of the application to the Secretary of Health and Human Services (HHS) for an opinion.

After HHS provides an opinion, USCIS will render a decision on the application. You will be notified in writing of the decision. If the application is denied, you will be provided with information on how the decision can be appealed.

If the application is approved, it will be approved for 5 years. You must apply for reauthorization to issue certificates before your authorized period of time expires. Your continued eligibility to issue certificates will be reviewed periodically by USCIS.

What Are the Standards to Obtain Authorization to Issue Certificates?

Structure of the Organization

1. The organization must be incorporated as a legal entity.
 - A. The organization must be independent of any organization that functions as a representative of the occupation or profession in question or serves as or is related to a recruitment/placement organization.
 - B. USCIS must not approve an organization that is unable to render impartial advice regarding an individual's qualifications regarding training experience and licensure.

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- C. The organization must also be independent in all decision making matters pertaining to evaluations and/or examinations that it develops including, but not limited to:
- (1) Policies and procedures; eligibility requirements and application processing; standards for granting certificates and their renewal; examination content, development, and administration; examination cut-off scores, excluding those pertaining to English language requirements; grievance and disciplinary processes; governing body and committee meeting rules; publications about qualifying for a certificate and its renewal; setting fees for applications and all other services provided as part of the screening process; funding spending and budget authority related to the operation of the certification organization; ability to enter into contracts and grant arrangements; ability to demonstrate adequate staffing and management resources to conduct the program(s) including the authority to approve selection of, evaluate and initiate dismissal of the chief staff member.
 - (2) An organization whose fees are based on whether an applicant receives a visa may not be approved.
2. The organization must include the following representation in the portion of its organization responsible for overseeing certification and, where applicable, examinations:
- A. Individuals from the same health care discipline as the alien health care worker being evaluated who are eligible to practice in the United States; and
 - B. At least one voting public member to represent the interests of consumers and protect the interests of the public at large. The public member must not be a member of the discipline or derive significant income from the discipline, its related organizations, or the organization issuing the certificate.
3. The organization must have a balanced representation such that the individuals from the same health care discipline, the voting public members, and any other appointed individuals have an equal say in matters relating to credentialing and/or examinations.
4. The organization must select representatives of the discipline using one of the following recommended methods, or demonstrate that it has a selection process that meets the intent of these methods:
- A. Be selected directly by members of the discipline eligible to practice in the United States;
 - B. Be selected by members of a membership organization representing the discipline or by duly elected representatives of a membership; or
 - C. Be selected by a membership organization representing the discipline from a list of acceptable candidates supplied by the credentialing body.
5. The organization must use formal procedures for the selection of members of the governing body which prohibit the governing body from selecting a majority of its successors. Not-for-profit corporations which have difficulty meeting this requirement may provide in their applications evidence that the organization is independent and free of material conflicts of interest regarding whether an alien receives a visa.
6. The organization must be separate from the accreditation and educational functions of the discipline, except for those entities recognized by the U. S. Department of Education as having satisfied the requirement of independence.
7. The organization must publish and make available a document that clearly defines the responsibilities of the organization and outlines any other activities arrangements or agreements of the organization that are not directly related to the certification of health care workers.

Resources of the Organization

- 1. The organization must demonstrate that its staff has the knowledge and skills necessary to accurately assess the education, work experience, licensure of health care workers, and the equivalence of foreign educational institutions comparable to those of U.S. trained health care workers and institutions.
- 2. The organization must demonstrate the availability of financial and material resources to effectively and thoroughly conduct regular and ongoing evaluations on an international basis.

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3. If the health care field is one for which a majority of the States require a predictor test, the organization must demonstrate the ability to conduct examinations in those countries with educational and evaluation systems comparable to the majority of States.
 4. The organization must have the resources to publish and make available general descriptive materials on the procedures used to evaluate and validate credentials including eligibility requirements, determination procedures, examination schedules, locations, fees, reporting of results, and disciplinary and grievance procedures.

Candidate Evaluation and Testing Mechanisms

1. The organization must publish and make available a comprehensive outline of the information, knowledge, or functions covered by the evaluation/examination process including information regarding testing for English language competency.
2. The organization must use reliable evaluation examination mechanisms to evaluate individual credentials and competence that is objective, fair to all candidates, job related, and based on knowledge and skills needed in the discipline.
3. The organization must conduct ongoing studies to substantiate the reliability and validity of the evaluation/examination mechanisms.
4. The organization must implement a formal policy of periodic review of the evaluation/examination mechanism to ensure ongoing relevance of the mechanism with the respect to knowledge and skills needed in the discipline.
5. The organization must use policies and procedures to ensure that all aspects of the evaluation/examination procedures, as well as the development and administration of any tests, are secure.
6. The organization must institute procedures to protect against falsification of documents and misrepresentation including a policy to request each applicant's transcript(s) and degree(s) directly from the educational licensing authorities.
7. The organization must establish policies and procedures that govern the length of time the applicant's records must be kept in their original format.
8. The organization must publish and make available, at least annually, a summary of all screening activities for each discipline including at least the number of applications received, number of applicants evaluated, number receiving certificates, number who failed, and the number receiving renewals.

Responsibilities to Applicants Applying for an Initial Certificate or Renewal

1. The organization must not discriminate among applicants as to age, sex, race, religion, national origin, disability, or marital status and must include a statement of nondiscrimination in announcements of the evaluation examination procedures and renewal certification process.
2. The organization must provide all applicants with copies of formalized application procedures for evaluation examination and must uniformly follow and enforce such procedures for all applicants. Instructions must include standards regarding English language requirements.
3. The organization must implement a formal policy for the periodic review of eligibility criteria and application procedures to ensure that they are fair and equitable.
4. Where examinations are used, the organization must provide competently proctored examination sites at least once annually.
5. The organization must report examination results to applicants in a uniform and timely fashion.
6. The organization must provide applicants who failed either the evaluation or examination with information on general areas of deficiency.

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7. The organization must implement policies and procedures to ensure that each applicant's examination results are held confidential and delineate the circumstances under which the applicant's certification status may be made public.
 8. The organization must have a formal policy for renewing the certification if an individual's original certification has expired before the individual first seeks admission to the United States or applies for adjustment of status. Such procedures must be restricted to updating information on licensure to determine the existence of any adverse action and the need to re-establish English competency.
 9. The organization must publish due process policies and procedures for applicants to question eligibility determinations, examination or evaluation results, and eligibility status.
 10. The organization must provide all qualified applicants with a certificate in a timely manner.

Maintenance of Comprehensive and Current Information

1. The organization must maintain comprehensive and current information of the type necessary to evaluate foreign educational institutions and accrediting bodies for purposes of ensuring that the quality of foreign educational programs is equivalent to those training the same occupation in the United States. The organization must examine, evaluate, and validate the academic and clinical requirements applied to each country's accrediting body or bodies, or in countries not having such bodies, of the educational institution itself.
2. The organization must also evaluate the licensing and credentialing system(s) of each country or licensing jurisdiction to determine which systems are equivalent to that of the majority of the licensing jurisdiction in the United States.

Ability to Conduct Examinations Fairly and Impartially

An organization undertaking the administration of a predictor examination, or a licensing or certification examination, must demonstrate the ability to conduct such examination fairly and impartially.

Criteria for Awarding and Governing Certificate Holders

1. The organization must issue a certificate after the education, experience, license, and English language competency have been evaluated and determined to be equivalent to their U. S. counterparts. In situations where a U. S. nationally recognized licensure or certification examination, or a test predicting the success on the licensure or certification examination, is offered overseas the applicant must pass the examination or predictor test prior to receiving certification. Passage of a test predicting the success on the licensure or certification examination may be accepted only if a majority of the states (and Washington, D.C.) licensing the profession in which the alien intends to work recognize such a test.
2. The organization must have policies and procedures for the revocation of certificates at any time if it is determined that the certificate holder was not eligible to receive the certificate at the time it was issued. If the organization revokes an individual's certificate, it must notify USCIS, via the Nebraska Service Center, and the appropriate state regulatory authority with jurisdiction over the individual's health care profession. The organization may not re-issue a certificate to an individual whose certificate has been revoked.

Criteria for Maintaining Accreditation

1. The organization must advise USCIS of any changes in purpose, structure, or activities of the organization or its program(s).
2. The organization must advise USCIS of any major changes in the evaluation of credentials and examination techniques, if any, or in the scope or objectives of such examinations.
3. The organization must, upon request, submit to USCIS, or any organization designated by USCIS, information requested of the organization and its programs for use in investigating allegations of noncompliance with standards and for general purposes of determining continued approval as an independent credentialing organization.

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4. The organization must establish performance outcome measures that track the ability of the certificate holders to pass U. S. licensure or certification examinations.

The purpose of the process is to ensure that certificate holders pass U. S. licensure or certification examinations at the same pass rate as graduates of the U. S. programs. Failure to establish such measures, or having a record showing an inability of persons granted certificates to pass U. S. licensure examinations at the same rate as graduates of U. S. programs, may result in a ground for termination of approval. Information regarding the passage rates of certificate holders must be maintained by the organization and provided to HHS on an annual basis, to USCIS as part of the 5-year reauthorization application, and at any other time upon request by HHS or USCIS.

5. The organization must be in ongoing compliance with other policies specified by USCIS.

Are There Any Limitations If This Application Is Approved?

If your application is approved, it will be approved for a period of 5 years. USCIS will conduct a review of your organization every 5 years to ensure continued compliance with the standards described. The review will occur concurrent with the adjudication of your request for reauthorization to issue health care worker certificates. If USCIS determines that you are not complying with the terms of authorization, or if other adverse information is brought to USCIS's attention, USCIS may proceed to terminate your authorization to issue health care worker certificates.

What Is Our Authority for Collecting This Information?

We request the information on this form to carry out the immigration laws contained in Title 8, U.S. Code, Section 1186.

We need this information to determine whether a person is eligible for immigration benefits. The information the organization or individuals on behalf of the organization provides may also be disclosed to other Federal, State, local, and foreign law enforcement and regulatory agencies.

The organization, or individuals on behalf of the organization, do not have to give this information. However, refusal to give some or all of it may result in denial of the application.

General Instructions

We provide free forms through the USCIS website. To view, print, or complete our forms, you should use the latest version of Adobe Reader, which you can download for free at <http://get.adobe.com/reader/>. If you do not have internet access, you may call the USCIS Contact Center and ask that we mail a form to you.

Signature. You (or your signing authority) must properly complete your application. USCIS will not accept a stamped or typewritten name in place of any signature on this application. If you are under 14 years of age, your parent or legal guardian may sign the application on your behalf. A legal guardian may also sign for a mentally incompetent person. If your application is not signed, or if the signature is not valid, we will reject your application. See 8 CFR 103.2(a)(7)(ii) (A). If USCIS accepts a request for adjudication and determines that it has a deficient signature, USCIS may reject or deny the request.

Validity of Signatures. USCIS will consider a photocopied, faxed, or scanned copy of an original benefit request with a handwritten signature as valid for filing purposes. The photocopy, fax, or scan must be of the original request or document containing the handwritten ink signature.

Filing Fee. See Form G-1055, available at www.uscis.gov/forms, for specific information about the fees applicable to this form.

Evidence. When you file your petition, you must submit all evidence and supporting documents.

Copies. You should submit legible photocopies of requested documents unless the Instructions specifically instruct you to submit an original document. USCIS may request an original document at any time during our process. If we request an original document from you, we will return it to you after USCIS determines it no longer needs the original.

NOTE: If you submit original documents when they are not required or requested, **USCIS may destroy them after we receive them.**

Translations. If you submit a document with information in a foreign language, you must also submit a full English translation. The translator must sign a certification that the English language translation is complete and accurate, and that they are competent to translate from the foreign language into English. The certification must also include their signature, printed name, the signature date, and their contact information.

USCIS Contact Center. For additional information on the application and Instructions about where to file, change of address, and other questions, visit the USCIS Contact Center at www.uscis.gov/contactcenter or call **800-375-5283** (TTY **800-767-1833**). The USCIS Contact Center provides information in English and Spanish.

Disability Accommodations/Modifications. To request a disability accommodation/modification, follow the instructions on your appointment notice or at www.uscis.gov/accommodationsinfo.

How To Complete Form I-905

1. Type or print legibly in black ink.
2. If you need extra space to complete any item within this application, attach a separate sheet of paper; type or print your company or organization name at the top of each sheet; indicate the **Page Number**, **Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet.
3. Answer all questions fully and accurately. If a question does not apply to you (for example, if you have never been married and the question asks, "Provide the name of your current spouse"), type or print "N/A" unless otherwise directed. If your answer to a question which requires a numeric response is zero or none (for example, "How many children do you have" or "How many times have you departed the United States"), type or print "None" unless otherwise directed.
4. **USCIS Online Account Number.** You will only have a USCIS Online Account Number (OAN) if you previously filed a form that has a receipt number that begins with IOE. If you filed the form online, you can find your OAN in your account profile. If you mailed us the form, you can find your OAN at the top of the Account Access Notice we sent you. If you do not have a receipt number that begins with IOE, you do not have an OAN. The OAN is not the same as an A-Number.

Statement, Certification, Signature, and Contact Information of the Applicant

Select the box that indicates if you filled out this form or if someone interpreted this form for you. Additionally, if applicable, select the box that indicates if someone filled out this form for you. Every application must contain the original signature of the applicant. Sign and date the form and provide your daytime telephone number, mobile telephone number, and email address.

Contact Information, Certification, and Signature of Interpreter

If you used an interpreter to read the instructions and complete the questions on this form, the interpreter must fill out this section, provide the name of his or her business/organization, the business/organization's address, his or her daytime telephone number, and his or her email address. The interpreter must also sign and date the form.

Contact Information, Declaration, and Signature of the Person Preparing this Application, If Other Than the Applicant

This section must contain the original signature of the person who completed this form, if other than the applicant filing this form. If the person who completed this form is associated with a business or organization, you should complete the business/organization name and address sections. If the person completing this form is an attorney or accredited representative, he or she must submit a completed Form G-28, Notice of Entry of Appearance as Attorney or Accredited Representative, along with this application/petition.

Where to File?

Please see our website at www.uscis.gov/I-905 for the most current information about where to file this application.

Processing Information

Initial Processing. Once USCIS accepts your application, we will check it for completeness. If you do not properly complete this application, you will not establish a basis for your eligibility and we may reject or deny your application.

Requests for More Information. USCIS may request that you provide more information or evidence to support your application. We may also request that you provide the originals of any copies you submit. If we request an original document from you, we will return it to you after USCIS determines it is no longer needed.

Requests for Interview. We may request that you appear at a USCIS office for an interview based on your application. During your interview, USCIS may require you to provide your biometrics to verify your identity and/or update background and security checks.

Decision. The decision on Form I-905 involves a determination of whether you have established eligibility for the immigration benefit you are seeking. USCIS will notify you of our decision in writing.

USCIS Forms and Information

To ensure you are using the latest version of this application, visit www.uscis.gov.

Address Change

If you are not a U.S. citizen, you must notify USCIS of your new address within 10 days of moving from your previous residence. For information on changing your address, go to our website at www.uscis.gov/addresschange, or call the USCIS Contact Center.

NOTE: Do not submit a change of address request to the USCIS Lockbox.

Penalties

If you knowingly and willfully falsify or conceal a material fact or submit a false document with this form, we will deny the form and may deny any other immigration benefit.

In addition, you will face severe penalties provided by law and may be subject to criminal prosecution.

Privacy Act Notice

We ask for the information on this form, and associated evidence, to determine if you have established eligibility for the immigration benefit for which you are filing. Our legal right to ask for this information can be found in the Immigration and Nationality Act, as amended. We may provide this information to other government agencies. Failure to provide this information, and any requested evidence, may delay a final decision or result in denial of your Form I-905.